

UNIT 4

Disaster Management Policies and Legislation

UNIT 4

- Preparedness and Action at individual level for various disasters.
- Disaster Management Cycle: Pre-disaster, Emergency (Disaster) and Post Disaster,
- Disaster Management Act, 2005.
- National Framework for Disaster Management.
- Community planning education and Engineered structure /structural strengthening techniques.

Deadliest Disasters in Indian History

Year	Disaster	Impact
1737	Calcutta Cyclone	Estimated 300,000 deaths, one of the deadliest cyclones in history.
1897	Assam Earthquake	Magnitude 8.1, widespread destruction in Northeast India.
1943	Bengal Famine	Around 3 million deaths due to food shortages during WWII.
1979	Morvi Dam Failure (Gujarat)	Flood killed ~1,800 people.
1984	Bhopal Gas Tragedy	Worst industrial disaster; toxic gas leak killed thousands, long-term health impacts.
1999	Odisha Super Cyclone	~10,000 deaths, 12 million affected; turning point for disaster management.
2001	Gujarat Earthquake	Magnitude 7.7, killed ~20,000 people, destroyed Bhuj and surrounding areas.
2004	Indian Ocean Tsunami	~14,000 deaths in India, massive coastal destruction.

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2013	Uttarakhand Flash Floods	Thousands killed, Kedarnath temple area devastated.
2018	Kerala Floods	Over 400 deaths, widespread displacement.

Cyclones & Floods → Frequent in coastal states (Odisha, Andhra Pradesh, West Bengal, Kerala).

Earthquakes → Concentrated in Himalayan belt (Uttarakhand, Kashmir, Assam) and Gujarat

Industrial Disasters → Bhopal Gas Tragedy highlighted need for stricter safety laws.

Policy Shifts → The Odisha cyclone (1999) and Gujarat earthquake (2001) directly led to the Disaster Management Act (2005) and creation of NDMA.

Background- International initiatives

- In 1994 the **World Conference on Natural Disaster Reduction** was held in Yokohama, Japan.
- The conference adopted the **Yokohama strategy** and declared the **decade 1990-2000** as the **International Decade for Natural Disaster Reduction (IDNDR)**.
- **United Nations Office for Disaster Risk Reduction (UNISDR)** is the successor to the secretariat of IDNDR and was **created in 1999** to **implement UN Disaster Risk Reduction strategy**.

Hyogo Framework for Action (HFA)- 2005-2015

- The Hyogo Framework for Action was created by the World Conference on Disaster Reduction, which was held in Kobe, Hyogo, Japan, from January 18 to 22, 2005. **The Hyogo Framework for Action (HFA) is a 10-year plan (2005-2015)** to make the world safer from natural hazards.
- Priorities such as, Disaster risk reduction, identification, assessment through legal and policy frameworks, disaster preparedness and use of innovation was adopted.
- It sets out priorities and guiding principles for countries to follow in order to strengthen their disaster risk management capabilities and protect their populations from the devastating impacts of natural and man-made disasters.
- The HFA emphasizes the importance of community engagement and empowerment in disaster risk reduction efforts.

United Nations Disaster Risk Reduction Office (UNDRR)

- The United Nations Disaster Risk Reduction Office (UNDRR) plays a crucial role in the **implementation** of the Hyogo Framework for Action.
- UNDRR **supports the global effort** to reduce disaster risks and losses by **providing technical assistance, training, and capacity-building**.
- The organization also coordinates international cooperation and promotes the adoption of disaster risk reduction strategies at national and regional levels.

Convention: A legally binding international agreement between states. Once ratified, states are obligated to follow its provisions.

Protocol: A supplementary agreement to a convention, often specifying additional commitments or measures.

Agreement: A broader term that may refer to binding or non-binding instruments depending on the language used.

These instruments serve as legal frameworks that address specific or general environmental concerns, facilitating uniform action across borders.



Legally Binding Agreements (Treaties, Protocols, Conventions):

Countries must comply with obligations once they ratify.
Non-compliance can lead to international accountability or sanctions.



Non-Binding Agreements (Declarations, Frameworks, Political Commitments):

Serve as guidelines or moral commitments.
No legal enforcement mechanism.



**Binding agreements =
enforceable obligations.**

**Non-binding agreements =
political commitments.**

UNFCCC classification

Category	Meaning	Responsibilities
Annex I	Developed countries (OECD members in 1992) + Economies in Transition (EITs like Russia, Ukraine, Eastern Europe)	Must reduce greenhouse gas emissions and report regularly.
Annex II	Subset of Annex I (OECD members only, excluding EITs)	Provide financial and technological support to developing countries.
Non-Annex I	Developing countries (India, China, Brazil, etc.)	No binding emission reduction targets; focus on sustainable development and adaptation.

Hyogo Framework for Action: lessons learned, gaps identified and future challenges

- **Implementation Weaknesses-** Many countries adopted policies but struggled with actual implementation due to lack of capacity, funding, or political will.
- **Limited Accountability-** The framework was non-binding, meaning countries were not legally obligated to meet targets. Reporting was voluntary, leading to inconsistent monitoring and evaluation.
- **Insufficient Local Level Engagement Focus was largely at the national level, with less emphasis on empowering local communities.**
- Grassroots participation and indigenous knowledge were underutilized.
- **Weak Integration with Development Planning-** DRR was not fully integrated into sustainable development, climate change, and poverty reduction policies.

Sendai Framework for Disaster Risk Reduction 2015-2030

- **The Sendai Framework for Disaster Risk Reduction 2015-2030**, is the successor instrument to the Hyogo Framework.
 - It is a **non-binding agreement**, which the signatory nations, including India, will attempt to comply with on a voluntary basis.

Sendai Framework

- The **Sendai Framework for Disaster Risk Reduction (2015–2030)** was adopted at the **Third United Nations World Conference on Disaster Risk Reduction (WCDRR)**, held in **Sendai, Japan, from 14–18 March 2015**.
- The Sendai Framework is the first major agreement of the post-2015 development agenda, with seven targets and four priorities for action.
- The Framework aims to achieve the substantial reduction of disaster risk and losses in lives, livelihoods and health and in the economic, physical, social, cultural and environmental assets of persons, businesses, communities and countries over the next 15 years.

UN BODY FOR IMPLEMENTATION

- The **Sendai Framework for Disaster Risk Reduction (2015–2030)** is overseen and coordinated by the **United Nations Office for Disaster Risk Reduction (UNDRR)**.
- UN General Assembly (UNGA): Endorsed the Sendai Framework and receives progress reports.
- UN Economic and Social Council (ECOSOC): Coordinates with specialized agencies to align DRR with development goals.
- UNDP, WHO, FAO, UNESCO, WMO: Provide sector-specific support (health, agriculture, education, meteorology, etc.).

SENDAI FRAMEWORK

1 OUTCOME

The substantial reduction of disaster risk and losses in lives, livelihoods and health and in the economic, physical, social, cultural and environmental assets of persons, businesses, communities and countries

1 GOAL

Prevent new and reduce existing disaster risk through the implementation of integrated and inclusive economic, structural, legal, social, health, cultural, educational, environmental, technological, political and institutional measures that prevent and reduce hazard exposure and vulnerability to disaster, increase preparedness for response and recovery, and thus strengthen resilience

4 PRIORITIES

Understanding disaster risk

Strengthening disaster risk governance to manage disaster risk

Investing in disaster risk reduction for resilience

Enhancing disaster preparedness for effective response, and to "Build Back Better" in recovery, rehabilitation and reconstruction

7 TARGETS

To Decrease

- ↓ DISASTER MORTALITY BY 2030
- ↓ NUMBER OF AFFECTED PEOPLE BY 2030
- ↓ ECONOMIC LOSS BY 2030
- ↓ INFRASTRUCTURE DAMAGE BY 2030

To Increase

- ↑ DRR NATIONAL/LOCAL STRATEGIES BY 2020
- ↑ INTERNATIONAL COOPERATION BY 2030
- ↑ EWS AND DR INFORMATION BY 2030

Priority 1

Understanding disaster risk

Disaster risk management should be based on an understanding of disaster risk in all its dimensions of vulnerability, capacity, exposure of persons and assets, hazard characteristics and the environment. Such knowledge can be used for risk assessment, prevention, mitigation, preparedness and response.

Priority 2

Strengthening disaster risk governance to manage disaster risk

Disaster risk governance at the national, regional and global levels is very important for prevention, mitigation, preparedness, response, recovery, and rehabilitation. It fosters collaboration and partnership.

Priority 4

Enhancing disaster preparedness for effective response and to “Build Back Better” in recovery, rehabilitation and reconstruction

Priority 3

Investing in disaster risk reduction for resilience

Public and private investment in disaster risk prevention and reduction through structural and non-structural measures are essential to enhance the economic, social, health and cultural resilience of persons, communities, countries and their assets, as well as the environment.

7 TARGETS

- **Target A: Substantially reduce global disaster mortality by 2030**, aiming to lower average per 100,000 global mortality between 2020-2030 compared to 2005-2015
- **Target B: Substantially reduce the number of affected people globally by 2030**, aiming to lower the average global figure per 100,000 between 2020-2030 compared to 2005-2015
- **Target C: Reduce direct disaster economic loss** in relation to global gross domestic product (GDP) by 2030
- **Target D: Substantially reduce disaster damage to critical infrastructure and disruption of basic services**, among them health and educational facilities, including through developing their resilience by 2030
- **Target E: Substantially increase the number of countries** with national and local disaster risk reduction strategies by 2020
- **Target F: Substantially enhance international cooperation** to developing countries through adequate and sustainable support to complement their national actions for implementation of this framework by 2030
- **Target G: Substantially increase the availability of and access** to multi-hazard early warning systems (EWS) and disaster risk information and assessments to people by 2030

Expected Role of Stakeholders

- **Women and their participation are critical** for effectively managing disaster risk and designing, resourcing and implementing gender-sensitive disaster risk reduction policies, plans and programmes.
- **Children and youth** are agents of change and should be given the space and modalities to contribute to disaster risk reduction.
- **Older persons** have years of knowledge, skills and wisdom, which are invaluable assets to reduce disaster risk, and they should be included in the design of policies, plans and mechanisms, including for early warning.
- **Indigenous peoples**, through their experience and traditional knowledge, provide an important contribution to the development and implementation of plans and mechanisms, including for early warning.
- **Academia, scientific and research entities** and networks need to focus on the disaster risk factors and scenarios.
- **Business, professional associations and private sector financial institutions** as well as philanthropic foundations need to integrate disaster risk management into business models and practices through disaster-risk-informed investments.
- **Media** need to take an active and inclusive role at the local, national, regional and global levels in contributing to the raising of public awareness and understanding and disseminate accurate and non-sensitive disaster risk, hazard and disaster information, including on small-scale disasters

REMARK

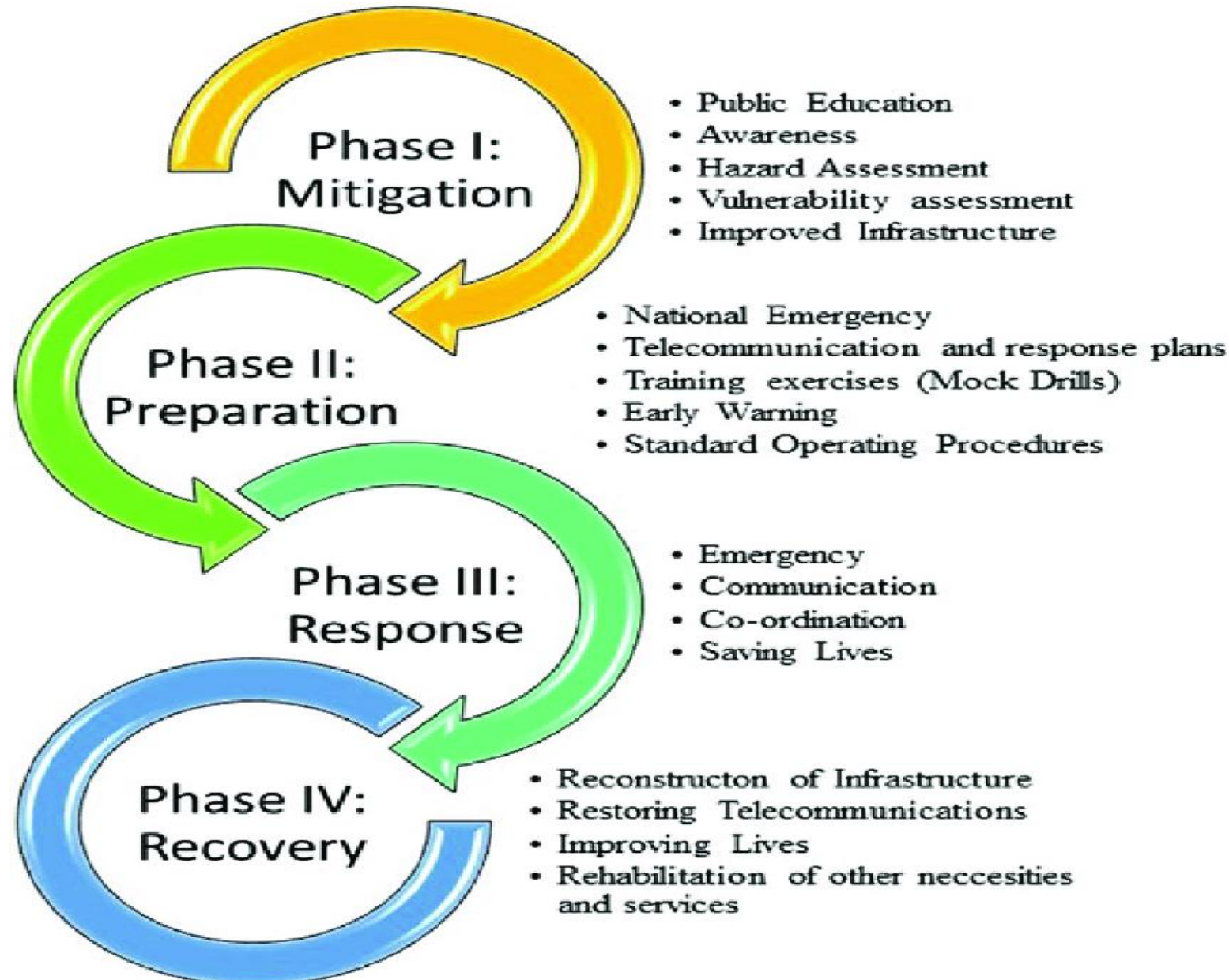
- There are three international agreements within the context of the post- 2015 development agenda. These are:
 - The Sendai Framework.
 - Sustainable Development Goals 2015-2030
 - The Paris agreement (COP 21) on Climate Change.
- These three agreements recognize the desired outcomes in Disaster Risk Reduction as a product of interconnected social and economic processes, which overlap across the agendas of the three agreements.

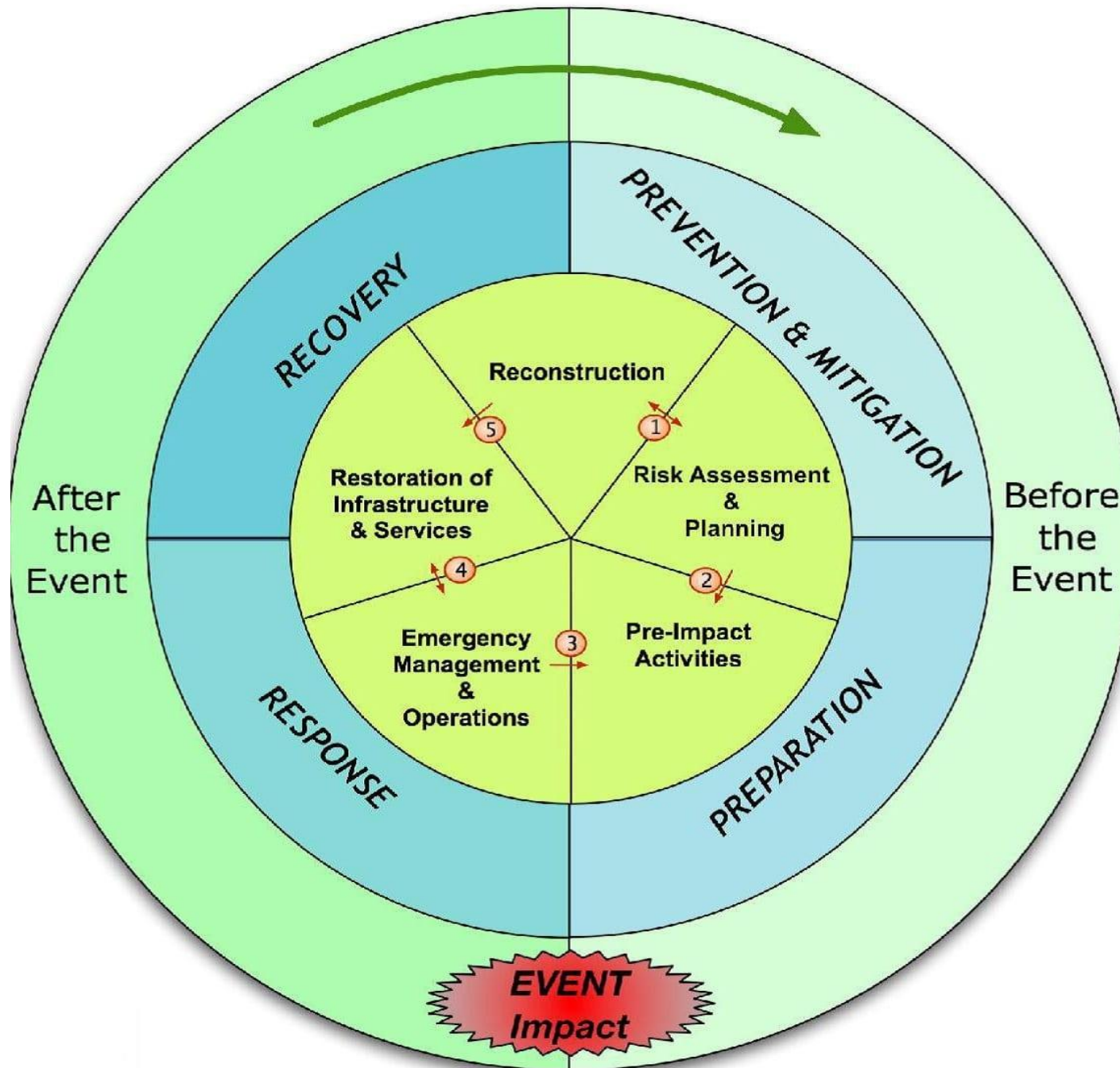
Phases of Disaster Management

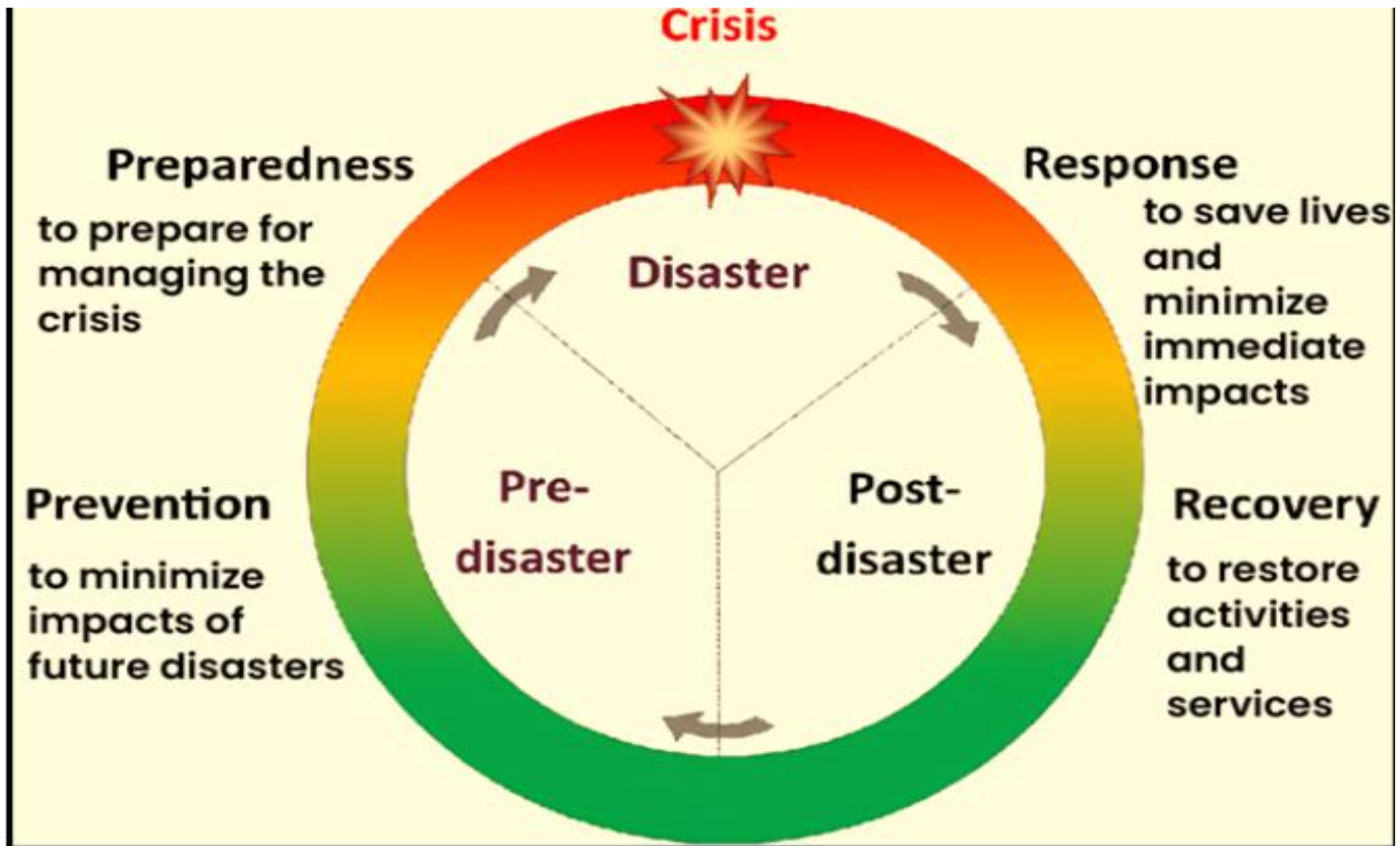
- disaster management cycle comprises various phases including policy formulation and planning aimed at either preventing disasters or reducing their impact on people, property, and infrastructure.



DISASTER MANAGEMENT CYCLE







Disaster Management Cycle

Key preparedness activities

- **Risk evaluation and hazard mapping**
- **Early warning systems**
- **Communication systems and coordination mechanisms**
- **Public education and disaster simulation exercises** -Japan's disaster preparedness system combines seismic monitoring with public outreach, clearly marked evacuation routes, and regular drills. Students across schools routinely practice evacuation procedures, with substantial time devoted to disaster readiness in the public school curriculum.
- **Financial resource allocation**

Response: mobilising emergency services

- It involves deploying emergency services and first responders — firefighters, police, ambulance crews, and search-and-rescue teams — to the affected area.
- The initial priority is always saving lives.
- The rapid, immediate, and short-term actions surrounding a disaster are collectively known as disaster response. It is one of the core activities of disaster management and involves executing a disaster plan when an event occurs.
- **all disasters are local** — the response nearly always begins before any official disaster declaration, with local first responders being the first to arrive at the scene.

- **basic humanitarian needs:** providing food, clean water, emergency shelter, clothing, and medical care to affected populations.

RECOVERY

- The recovery phase begins immediately after the threat to human life has subsided, and its goal is to bring the affected area back to some degree of normalcy.
- Recovery goes **well beyond clearing debris**. It encompasses rebuilding destroyed property, rehabilitating affected populations, restoring essential infrastructure, and supporting economic re-establishment.

Short-term and long-term recovery

- The short-term phase typically lasts **six months to one year** and involves delivering immediate services. The long-term phase can stretch for years or even decades and requires careful strategic planning to address more permanent impacts.
- During long-term recovery, communities focus **on reconstructing infrastructure, revitalising local economies, and addressing the psychological** and social needs of affected populations.
- Key recovery activities include **repairing roads, bridges, power systems, and water supply networks. Hospitals and schools need to be rebuilt. Housing must be restored or replaced. People need to return to employment, and businesses need support to restart operations.**

Build back better

- the idea that reconstruction should not simply replicate pre-disaster conditions but should actively reduce future risk.
- The **Sendai Framework** recognises the recovery, rehabilitation, and reconstruction phase as a critical opportunity to build back better by integrating disaster risk reduction into development measures.

Cont..

- constructing buildings to higher safety standards, relocating communities away from high-risk zones, improving drainage and flood defences, and incorporating climate-resilient design into new infrastructure.
- The UNDRR defines building back better as using the recovery phase to increase community resilience by integrating disaster risk reduction measures into the restoration of physical infrastructure, societal systems, livelihoods, and environments.

Mitigation: long-term risk reduction

- Mitigation is about — reducing loss of life and property by lessening the impact of disasters through measures that can prevent an emergency, reduce the chance of one occurring, or reduce its damaging effects.
- Mitigation takes both structural and non-structural forms, and it operates on a long-term horizon, aiming to reduce vulnerability well before the next disaster event.

Structural mitigation measures

- **Strengthening buildings and infrastructure** is a foundational mitigation strategy. This includes enforcing upgraded building codes so structures can better withstand earthquakes, high winds, or flooding.
- Ex- securing furniture to floors and walls to prevent damage during earthquakes, and creating defensible space around buildings to guard against fires.
- **Water management systems in drought-prone areas**, construction of flood barriers, and seismic retrofitting of older buildings are all examples of structural mitigation that have proven effective worldwide.

Non-structural mitigation measures

- These include land-use planning and zoning regulations that prevent construction in flood plains, coastal erosion zones, or areas prone to landslides. Relocating communities from hazard-prone areas is another critical non-structural measure, though it comes with significant social and economic challenges.
- Insurance programmes, such as the National Flood Insurance Program in the United States, also serve as mitigation tools by creating financial incentives for risk reduction and helping communities recover financially after events.
- The Sendai Framework for Disaster Risk Reduction outlines four priorities for action, including investing in disaster reduction for resilience, and calls on nations to adopt measures that address exposure to hazards, vulnerability and capacity, and hazard characteristics.

Key programs

- **General Insurance Policies**
- **Home Insurance:** Covers damage to houses due to floods, earthquakes, cyclones, landslides.
- **Motor Insurance:** Includes natural disaster coverage for vehicles.
- **Health Insurance:** Some policies cover injuries or hospitalization due to disasters.
- **SME/Business Insurance:** Protects small businesses against disaster-related losses.

Government-Supported Schemes

Pradhan Mantri Fasal Bima Yojana (PMFBY)

- Crop insurance for farmers against droughts, floods, cyclones, and pest attacks.
- Premiums are subsidized, making it affordable for rural households.

• **National Agricultural Insurance Scheme (NAIS)**

- Earlier version of PMFBY, still relevant in some states.

• **State Disaster Relief Funds (SDRF)**

- Though not insurance per se, these funds provide compensation to affected households after disasters.

Emerging Disaster Risk Insurance

- **Parametric Insurance Models:** Pay-outs triggered by measurable disaster events (like cyclone wind speed or rainfall levels).
- **Risk Pooling Initiatives:** NDMA and the Department of Financial Services are exploring national disaster risk insurance pools to protect vulnerable populations.

Commitment Area	First NDC (2015)	Updated NDC (2021–2022)	Progress (BUR4, 2025)	Updated NDC (2031-2035)
Emissions intensity	Reduce emissions intensity of GDP by 33–35 per cent below 2005 levels	Reduce emissions intensity of GDP by 45 per cent below 2005 levels by 2030	Emissions intensity of India's GDP reduced by 36 per cent from 2005 levels (as of 2020)	Target 47 per cent reduction in emissions intensity of GDP by 2035 compared to 2005 levels

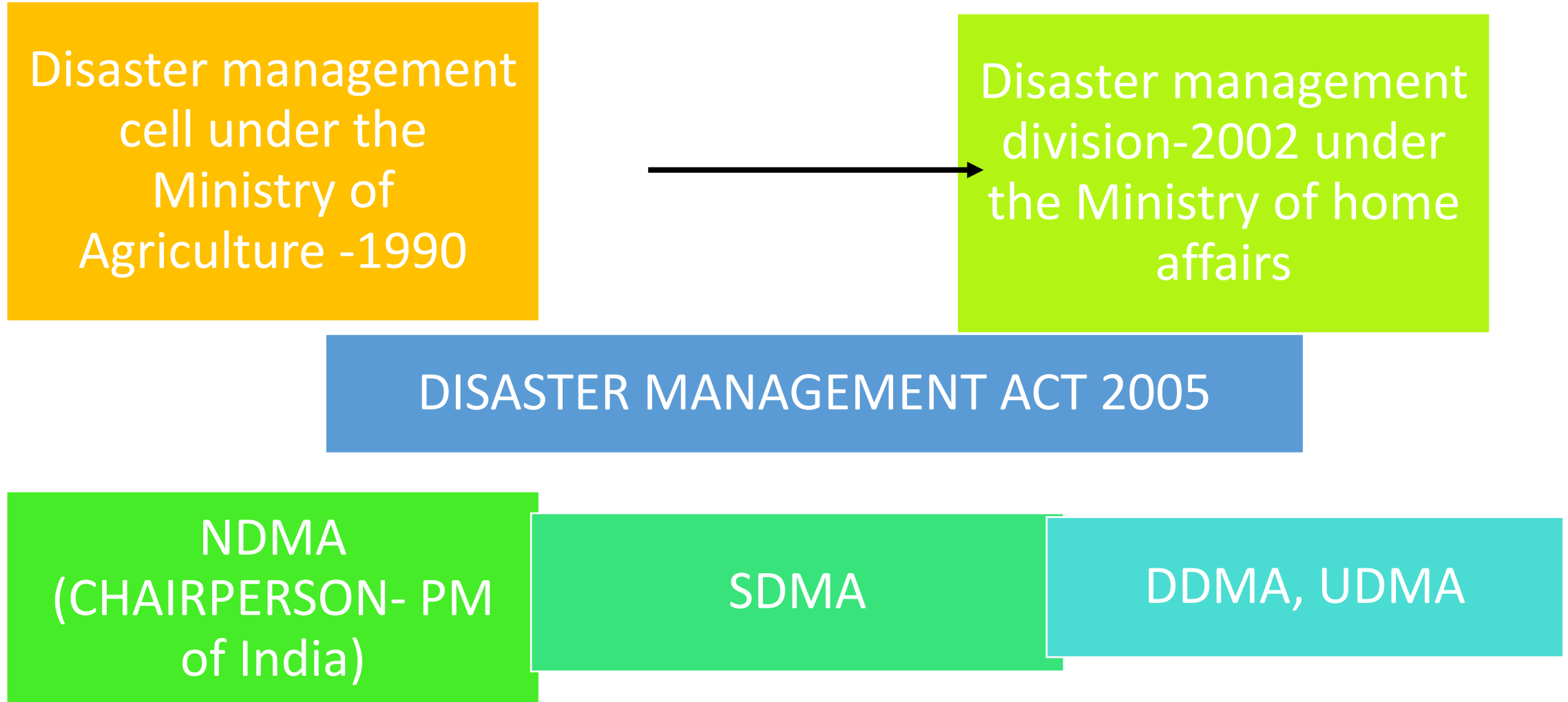
Non-fossil power capacity	Achieve 40 per cent of installed electric power capacity from non-fossil sources by 2030	Achieve 50 per cent of cumulative installed power capacity from non-fossil sources by 2030	Non-fossil sources accounted for 49.75 per cent of installed capacity (July 2025); however, coal still contributes about 75 per cent of generation	Achieve 60 per cent of cumulative installed electricity capacity from non-fossil sources by 2035
Carbon sink (forests)	Create an additional carbon sink of 2.5–3 GtCO ₂ e by 2030 through increased forest and tree cover		Additional carbon sink of 2.29 billion tonnes of CO ₂ e achieved between 2005 and 2021	Create 3.5–4 billion tonnes CO ₂ e carbon sink through increased forest and tree cover
Long-term target		Net-zero emissions by 2070		

As per Act 2005

- **Disaster**

“Disaster” refers to a catastrophe, mishap, calamity, or grave occurrence in any area that results in a significant loss of life or human suffering, damage to, and destruction of, property, damage to, or degradation of, environment. It is of a nature or magnitude that is beyond the capacity of the community of the affected area to deal with.

Existence of Law

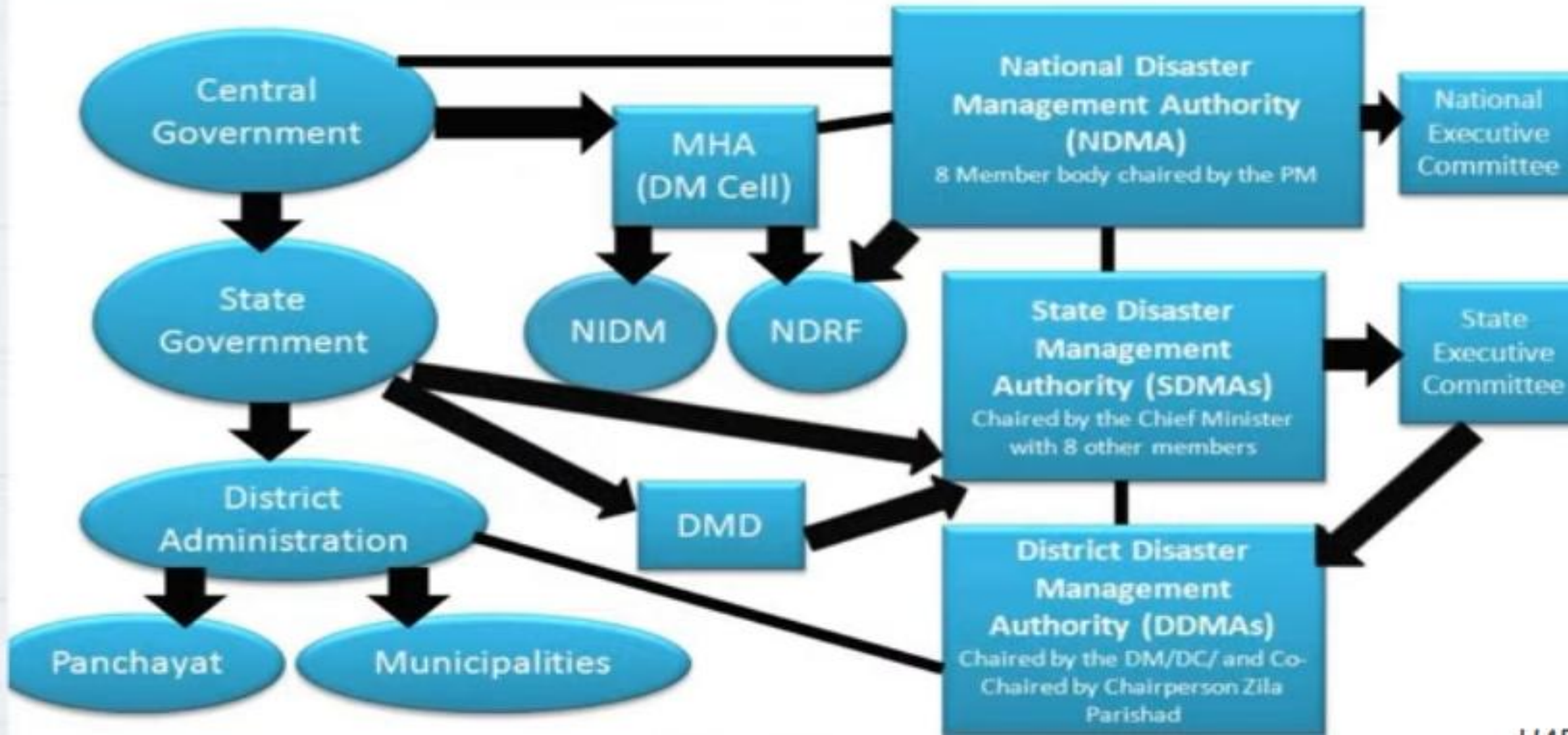


India's Disaster Management Framework



From Authority & Guidance to Action

INSTITUTIONAL FRAMEWORK



NCMIC

National Crisis Management Committee
Under Cabinet Secretariat

NDMA

National Disaster
Management Authority

National Level

SDMA

State Disaster
Management Authority

State Level

DDMA

District Disaster
Management Authority

District Level

UDMA

Urban Disaster
Management Authority

Urban Level

Local Agencies & Emergency Services

Police, Fire Services, Health Departments, NGOs, etc.

Role of the National Crisis Management Committee (NCMC)

- The NCMC, **chaired by the Cabinet Secretary**, is responsible for high-level coordination during major disasters.
- Ensures immediate **mobilization of central resources, including armed forces, ministries, and agencies**.
- Works **closely with NDMA** to align national disaster response with policy and planning.
- Provides a platform for **urgent decisions** when disasters overwhelm state capacity

UDMA — MNC

- Established by the Disaster Management (Amendment) Act, 2025.
- Provides autonomy to major cities and urban centers to plan and execute disaster risk reduction (DRR) measures.
- Focuses on urban-specific risks such as floods, earthquakes, industrial accidents, and climate change impacts.
- Works in alignment with NDMA, SDMA, and DDMA but emphasizes city resilience frameworks

KEY FEATURES

- Urban Disaster Management Authorities (UDMAs): New bodies for city-level disaster risks like heatwaves, floods, and infrastructure collapse.
- Heatwaves Recognized as Disasters: Explicitly includes climate-related events such as heatwaves under disaster management.
- Integration with Development Planning: Disaster management must be mainstreamed into national and state development plans.
- Funding Clarity: Strengthens the role of the National Disaster Response Fund (NDRF) and State Disaster Response Fund (SDRF) for climate-sensitive disasters.
- Centralization of Authority: Expands the powers of the central government and NDMA, which has raised debates about reduced state autonomy.

Additional Functions for NDMA and SDMAs

National Disaster Management Authority (NDMA)

- **Preparation of National Disaster Management Plans** (earlier delegated to executive committees).
- **Periodic Disaster Risk Assessments**, including climate-related risks like heatwaves.
- **Technical Guidance & Minimum Relief Standards** for states and districts.
- **National Disaster Database Creation** to track vulnerabilities and disaster history.
- **Post-Disaster Audits** to evaluate relief and rehabilitation effectiveness.
- **Assessment of State Preparedness** to ensure uniform standards across India.

State Disaster Management Authorities (SDMAs)

- **Preparation of State Disaster Management Plans** (instead of executive committees).
- **State-Level Disaster Databases** for localized risk mapping.
- **Periodic Risk Assessments** tailored to state-specific hazards.
- **Post-Disaster Audits** at the state level.
- **Implementation of Minimum Relief Standards** as guided by NDMA

DMA 2005

- **11 CHAPTERS**
- **CHAPTER 1- PRELIMINARY**
- **CHAPTER 2- ESTABLISHMENT OF NDMA**
- **MEETING OF NATIONAL AUTHORITY**
- **APPOINTMENT OF OFFICER AND OTHER EMPLOYEES OF NDMA**
- **CHAPTER 3- SDMA**
- **CHAPTER 4- DDMA- CONSTITUTES, DUTY, POWER**
- **CHP- 5- MEASURES BY THE GOVERNMENT FOR DISASTER MANAGEMENT**
- **CHP 6- LOCAL AUTHORITY DUTIES**
- **CHP 7- ESTABLISHMENT OF NIDM**
- **CHP 8- NDRF- CONSTITUTION**
- **CHP 9- FINANCE, ACCOUNTS, AUDIT**
- **CHP 10- OFFENCES AND PENALTIES**
- **CHP 11- MISCELLANEOUS**

The Disaster Management Act, 2005 has provided the legal and institutional framework for disaster management in India at the national, state and district levels.

In the federal polity of India, the primary responsibility of Disaster management vests with the state government.

The central government lays down the plans, policies and guidelines and provides technical, financial and logistical support while the district administration carries out most of the operations in collaboration with central and state level agencies.

National Executive Committee (NEC)

— NDMA — M

- A National Executive Committee is constituted under Section 8 of DM Act, 2005 to assist the National Authority in the performance of its functions.
- Union Home secretary is its ex-officio chairperson.
- NEC has been given the responsibility to act as the coordinating and monitoring body for disaster management, to prepare a National Plan, monitor the implementation of National Policy etc.

National Institute of Disaster Management (NIDM)

- NIDM has the mandate of human resource development and capacity building for disaster management within the broad policies and guidelines laid down by the NDMA.

National Disaster response force (NDRF)

- NDRF is the specialized force for disaster response which works under the overall supervision and control of NDMA.

→ MHA

State Disaster Management Authority (SDMA)

- Headed by Chief Minister of the respective state, SDMA lays down the policies and plans for disaster management in the state.
- It is responsible to coordinate the implementation of the state Plan, recommend provision of funds for mitigation and preparedness measures and review the developmental plans of the different departments of the state to ensure integration of prevention, preparedness and mitigation measures.
- **State Executive Committee (SEC)**- Headed by the Chief Secretary of the state, SEC has the responsibility for coordinating and monitoring the implementation of the National Policy, the National Plan and the State Plan as provided under the DM Act.

National Disaster Management Plan (NDMP)

Background & Evolution

- **Mandated by Section 11 of the Disaster Management Act, 2005**, but India lacked a unified national plan until **2016**.
 - NDMP **revised in 2019** after extensive stakeholder consultations.
 - India became the **first country to align its national plan with the Sendai Framework for Disaster Risk Reduction (SFDRR)**.
- 

National Policy on Disaster Management, 2009

Approved by the Union Cabinet on 22 October 2009,— a comprehensive roadmap for how India would actually pursue disaster risk reduction across every administrative level and every phase of the disaster management cycle.

AIM

To bring in transparency and accountability in all aspects of disaster management through involvement of community, community-based organisations, Panchayati Raj Institutions (PRIs), local bodies and civil society

The policy covers -:

- institutional and legal arrangements,
- financial mechanisms,
- disaster prevention,
- mitigation and preparedness,
- techno-legal regime,
- response and relief, rehabilitation, reconstruction,
- capacity development,
- knowledge management,
- research and development.

SDRF AND NDRF

- The SDRF is constituted under the Disaster Management Act, 2005 and is the primary fund with state govts for responses to notified disasters.
- The Central government contributes 75 per cent towards the SDRF allocation for general category states and UTs, and over 90 per cent for special category states/UTs, which includes northeastern states, Sikkim, Himachal Pradesh and Uttarakhand).
- For SDRF, the Centre releases funds in two equal installments as per the recommendation of the Finance Commission.
- On the other hand, the National Disaster Response Fund, which is also constituted under the Disaster Management Act, 2005 supplements the SDRF of a state, in case of a disaster of severe nature, provided adequate funds are not available in the SDRF.
- The disasters covered under the SDRF include **cyclones, droughts, tsunamis, hailstorms, landslides, avalanches and pest attacks** among others.

COVID – 19, A NEW DISASTER

- Under Sections 6 and 10 of the law, PM Modi, who is also chairperson of the authority has declared Covid-19 as a national disaster so that the entire country has uniform lockdown regulations, which are easier to implement, especially on which services and functions are allowed and what are not.
- For instance, before the national lockdown was enforced under the law, state specific lockdowns and a lockdown of 82 districts by the federal government -- **both under the epidemics law** -- were inconsistent about the use of private vehicles.
- Under DMA, states are required to implement the national plans. The authority has protocols to deal with biological or epidemiological disasters such as Covid-19, for which special isolated health facilities have to be created.
- The Centre and the state governments can create disaster mitigation

CHAPTER I: Preliminary

- Defines "Disaster" (natural/man-made, sudden or slow onset)
- Scope: Preparedness, mitigation, response, recovery



CHAPTER II: National Disaster Management Authority (NDMA)

- Headed by Prime Minister
- Formulates national policies, guidelines, and plans
- Coordinates with ministries, departments, and states
- Advisory Committee for expert input
- National Executive Committee (NEC) for implementation



CHAPTER III: State Disaster Management Authority (SDMA)

- Headed by Chief Minister
- Prepares state disaster management plan
- Coordinates with districts and departments
- State Executive Committee (SEC) executes policies

CHAPTER IV: District Disaster Management Authority (DDMA)

- Headed by District Magistrate/Collector
- Prepares district disaster plan
- Ensures local preparedness and response
- Coordinates with local authorities



CHAPTER V: Measures by Government

- Central Govt: National plan, fund allocation, interstate coordination
- State Govt: State plan, fund management, training
- Departments: Sector-specific disaster plans



CHAPTER VI: Local Authorities

- Panchayats, Municipalities, Cantonment Boards
- Implement disaster plans at grassroots level

- CHAPTER VII: National Institute of Disaster Management (NIDM)

- • Training, research, documentation
- • Capacity building for stakeholders
-

- CHAPTER VIII: National Disaster Response Force (NDRF)

- • Specialized force for rescue & relief
- • Equipped for chemical, biological, radiological, nuclear emergencies

- CHAPTER IX: Finance, Accounts & Audit

- • National Disaster Response Fund (NDRF)
- • State Disaster Mitigation Fund
- • Audit by CAG (Comptroller and Auditor General)

CHAPTER X: Offences & Penalties

- Obstruction of authorities = punishment
- False claims for relief = penalty
- Misuse/misappropriation of funds = penalty

CHAPTER XI: Miscellaneous

- Central Govt powers to issue directions
- Immunity for actions taken in good faith
- Act overrides other inconsistent laws

PENALTY PROVISION

Section	Provision	Penalty/Punishment
51	Punishment for obstruction: Whoever obstructs any officer or employee in discharge of disaster management functions, or refuses to comply with directions.	Imprisonment up to 1 year, or fine, or both. If obstruction causes loss of lives/property → up to 2 years imprisonment.
52	Punishment for false claim: Making false claims for relief, assistance, or benefits under the Act.	Imprisonment up to 2 years, and fine.
53	Punishment for misappropriation of money or materials: Misusing funds or resources meant for disaster relief.	Imprisonment up to 2 years, and fine.
54	Punishment for false warning: Circulating false alarms or warnings about disasters leading to panic.	Imprisonment up to 1 year, or fine.

CONT..

55	Offences by departments of government: If a government department fails to comply with directions under the Act.	Head of the department deemed guilty unless he proves due diligence.
56	Failure of officer in duty: If an officer fails to perform duties assigned under the Act without reasonable cause.	Imprisonment up to 1 year, or fine.
57	Penalty for contravention of orders by companies: If a company contravenes provisions of the Act.	Persons in charge (directors, managers) deemed guilty unless they prove lack of knowledge/due diligence.

CASES- EXAMPLES

Delhi Coaching Centre Incident (Old Rajinder Nagar, July 2024)

- The basement of *Rau's IAS Study Circle* coaching centre was illegally used as a library. Heavy rain led to water accumulation on the road, which gushed into the basement.

Casualties: 3 Student drowned; around 30 students were trapped before rescue.

Violations:

- Basement clearance was only for storage, not for student use.
- Fire department noted **flouting of safety norms**.

Response:

- NDRF was called nearly two hours later.
- Case handed to **CBI** for investigation.
- Court denied bail to four co-owners, citing negligence

Himachal Pradesh Perfume Factory Fire (Solan District, February 2024)

A massive fire broke out at *NR Aroma's perfume factory* in Baddi (Nalagarh area).

Casualties:

- **At least 5 deaths** confirmed.
- **31 people injured.**
- **9 workers missing** even after 96 hours of rescue operations.

Challenges:

- Firefighting lasted nearly 24 hours due to chemical materials.
- Families of missing workers protested delays in search operations.

Response:

- NDRF and fire department deployed.
- Himachal CM Sukhvinder Singh Sukhu visited and announced compensation.
- Factory owner reportedly absconded, raising accountability concerns.

What Role has India Played in DRR Initiatives?

- **Global Level:**

- **Initiative at G-20:** During its G-20 presidency in 2023, India initiated the formation of a [Disaster Risk Reduction Working Group](#), marking a milestone in global collaboration for disaster resilience.
 - In its G20 Presidency, India enunciated its proactive approach on the issue based on the five priorities
 - Early warning systems
 - Disaster-resilient infrastructure
 - Disaster risk reduction financing
 - Resilient recovery
 - Nature based solutions
- **Coalition for Disaster Resilient Infrastructure (CDRI):** India's led [CDRI](#) focuses on building disaster-resilient infrastructure and enhancing international cooperation.
 - It now **comprises 40 countries** and **seven international organizations**.

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- **Bilateral and Multilateral Engagements:** India's participation in **troika meetings with Brazil and South Africa**, along with bilateral discussions with countries like Japan, Germany, and South Korea, demonstrates India's growing influence in shaping global disaster risk reduction policies.
- **Asian Disaster Preparedness Centre (ADPC):** [ADPC](#) is an autonomous international organisation focused on disaster risk reduction and climate resilience in Asia and the Pacific region. India took over as Chair of the Asian Disaster Preparedness Centre (ADPC) for 2024-25.
 - It was founded by India and eight neighboring countries: Bangladesh, Cambodia, China, Nepal, Pakistan, Philippines, Sri Lanka, and Thailand.

Challenges and Way Forward

- **Lack of disaster-resilient infrastructure:** Critical infrastructures like power supply, communication, water supply, and transport are highly susceptible to disaster events. Therefore, there is a need for disaster-resilient infrastructure, driven by both technology and indigenous knowledge.
- The importance of indigenous knowledge is yet to be completely realised for disaster management. Example: Koti Banal, a type of earthquake-resistant vernacular architecture in Uttarakhand.

- **Lack of Inter-Agency coordination and Standard Operating Procedures** for stakeholder groups is required. The Disaster Management plan must be synchronous with the State/District/ City Development plans.
- **Lack of early warning systems**: Early warning systems for certain hazards are still in the process of being designed and implemented in large parts of the nation. Though there has been considerable investment in early warning systems, there is a lot left to be achieved concerning the systems.
- **Lack of Coordination**: Due to the large number of stakeholders with different roles and responsibilities (DDMA, SDMA, NDMA, SEC, NEC etc.), the coordination between institutions becomes an issue sometimes.

- **Role of local bodies:** The local body's role in disaster management is very much crucial. An effective result of such responsibilities would be an outcome of an aware and conscious group of stakeholders in the local bodies.
- **Role of the Private Sector:** Private investments in disaster management have largely been unexplored. There has recently been a shift towards private investment in Corporate Social Responsibility (CSR), however, considerable scope remains further.
- **Neglecting unnatural disasters:** One of the glaring lacunae in the process of disaster management in India has been the overlooking of unnatural disasters. The current global situation also demands initiatives in managing the impact of unnatural disasters such as chemical spills, explosives, and chemical or biological attacks.

Question

- How important are vulnerability and risk assessment for pre-disaster management? As an administrator, what are key areas that you would focus in disaster management (Mains 2013)
- Question 2: Discuss the recent measures initiated in disaster management by the Government of India departing from the earlier reactive approach
- How many types of disaster management are there in India?+Q2. . What is the vision of NDMA?
- Q3. What are the disaster-prone zones in India?
- Q4. Which Ministry is responsible for disaster management?
- Q5. Who is the head of Disaster Management in India